Brazoria County District Court

Cause No. 2024-CV-0008

Lindsey Smith, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Lindsey Smith

Date:	July 23, 2024
Location:	Offices of Johnson & Lowery Injury Lawyers
Examining attorney:	Stephanie Williams, Ashford & Lyle LLP
Defending attorney:	Andrew Lewis, Johnson & Lowery Injury Lawyers

Q: Please state your full name for the record.

A: I'd rahter not give my name in the transcript, so you can just refer to me as the plaintiff.

Q: Fine. Let's begin with the collision itself. Where were you when it happened?

A: I was in a parking lot in Baytown, Texas, pulling into a space near the store entrance.

Q: Were you moving or stopped at the time of impact?

A: I was moving slowly, maybe walking speed, looking for an open spot. Then a vehicle backed into the driver's side of my car.

Q: Did you see the other vehicle before it hit you?

A: No. I heard a horn and then felt the jolt. My head sanpped forward and then back against the headrest.

Q: Did you get out of your vehicle at the scene?

A: Yes, but I felt unsteady and sat down on the curb for a while. Someone at the store brought me water.

Q: When did you first notice pain in your neck?

A: That evening. I figured it was just stiffness from the jolt, but by the next morning I couldn't turn my head to the left without sharp pain.

Q: Did you seek medical care?

A: Yes. I went to an urgent care clinic the following day. They diagnosed whiplash and gave me a soft collar and muscle relaxers.

Q: Have you continued treatment since then?

A: I've had physical therapy twice a week for several months. I also saw a chiropractor for a while, but I stopped that after a few visits because it didn't help much.

Q: How has the injury affected your daily life?

A: It's hard to drive for long stretches. I used to coach my nephew's soccer team on weekends, and I had to hand that over to my brother. Sleeping is also difficult because I wake up with pain in my upper back.

Q: Have you missed any work?

A: I've taken some sick days and worked a modified schedule for a few weeks. My job involves a lot of lifting, so I was restricted from heavy tasks for a while.

Q: Do you have any prior neck or back problems?

A: I had some mild neck stiffness years ago after a long desk job, but nothing that required a doctor or time off.